UNITED STATES BANKRUPTCY COURT
MIDDLE DISTRICT OF LOUISIANA

In re: SAMPLE HOLDINGS, LLC Debtor. JANE SAMPLE, CHAPTER 7 TRUSTEE, Plaintiff, v. SAMPLE TRANSFEREE, LLC, and JOHN Q. SAMPLE, Defendant.	Case No. 26-10000 Chapter 7 Adversary Proceeding No. 26-01000

ADVERSARY COMPLAINT TO AVOID AND RECOVER FRAUDULENT TRANSFERS AND FOR RELATED RELIEF

1. Plaintiff Jane Sample, the Chapter 7 trustee (the "Trustee") of the bankruptcy estate of the above-captioned Debtor, files this Adversary Complaint against Defendants Sample Transferee, LLC and John Q. Sample, and alleges as follows.

NATURE OF THE ACTION

2. This action seeks to avoid transfers of real property and cash made by the Debtor within two years before the petition date, to recover the transferred property or its value for the benefit of the estate, and to disallow any claim of a transferee until the transferred property is returned.

JURISDICTION AND VENUE

3. The Court has jurisdiction over this adversary proceeding under 28 U.S.C. §§ 1334(b) and 157(a). This proceeding arises under title 11 and arises in the bankruptcy case captioned above, *In re Sample Holdings, LLC*, Case No. 26-10000, pending in the United States Bankruptcy Court for the Middle District of Louisiana.

4. This is a core proceeding under 28 U.S.C. § 157(b)(2)(H), which concerns proceedings to determine, avoid, or recover fraudulent conveyances. The Trustee consents to the entry of final orders and judgment by the Bankruptcy Court in this proceeding.

5. Venue is proper in this district and division under 28 U.S.C. § 1409(a) because this proceeding arises under title 11 and in a case pending in this district.

6. The Trustee brings this proceeding under Federal Rule of Bankruptcy Procedure 7001(1), which governs a proceeding to recover money or property, and under the Federal Rules of Bankruptcy Procedure 7008 and 7010, which apply Federal Rule of Civil Procedure 8 and Rule 10 to this proceeding.

PARTIES

7. The Debtor, Sample Holdings, LLC (the "Debtor"), is a Louisiana limited liability company with its principal place of business in East Baton Rouge Parish, Louisiana.

8. Plaintiff Jane Sample is the duly appointed and acting Chapter 7 trustee of the Debtor's bankruptcy estate. She was appointed under 11 U.S.C. § 701 and has standing to prosecute the claims in this complaint under 11 U.S.C. §§ 544, 548, and 550.

9. Defendant Sample Transferee, LLC ("Transferee") is a Louisiana limited liability company. It may be served with summons and this complaint through its registered agent at the address on file with the Louisiana Secretary of State.

10. Defendant John Q. Sample ("Mr. Sample") is an individual residing in East Baton Rouge Parish, Louisiana. He is the managing member of Transferee and was, at all relevant times, an insider of the Debtor within the meaning of 11 U.S.C. § 101(31).

FACTUAL ALLEGATIONS

The Debtor and Its Business

11. The Debtor was organized in 2019 to hold and lease commercial real estate. Its sole managing member was Mr. Sample.

12. The Debtor's principal asset was a commercial building at 200 Example Avenue, Baton Rouge, Louisiana (the "Property"), which it acquired in 2020. The Debtor's only significant source of income was rent from its tenants at the Property.

13. Between 2023 and 2025 the Debtor's rental income declined and it fell behind on its obligations to its principal secured lender and to unsecured trade creditors.

The Transfers

14. On March 3, 2026, the Debtor executed a deed conveying the Property to Transferee for stated consideration of $10. The deed was recorded in the public records of East Baton Rouge Parish on March 5, 2026 (the "Property Transfer").

15. Transferee had no other business activity and paid no reasonably equivalent value for the Property. At the time of the Property Transfer, the Property had a fair market value of not less than $1,850,000, based on the appraisal prepared for the secured lender in 2025.

16. On March 10, 2026, the Debtor also paid $142,500 in cash to Mr. Sample, which was not payment of any debt then due to him (the "Cash Transfer," and together with the Property Transfer, the "Transfers").

17. The Transfers were made within two years before the petition date. The petition commenced this case on May 22, 2026 (the "Petition Date").

The Debtor's Financial Condition

18. When the Property Transfer was made, the Debtor was insolvent or became insolvent as a result of it. Its liabilities exceeded the fair value of its assets, and it was generally not paying its debts as they came due.

19. The Debtor received less than reasonably equivalent value in exchange for each Transfer and was engaged in business for which its remaining property was an unreasonably small capital.

20. The Transfers were made to an insider, Transferee and Mr. Sample, shortly before the Debtor's secured lender commenced foreclosure proceedings against the Property.

Badges of Fraud

21. Each of the Transfers was made to an insider of the Debtor. Transferee is wholly owned by Mr. Sample, and Mr. Sample is the Debtor's managing member.

22. The Property Transfer was made after the Debtor had been served with a notice of default and a demand for payment from its secured lender, and it was made for a nominal price that did not reflect the Property's value.

23. The Cash Transfer was made without any written agreement, and the Debtor's books for 2026 do not record any obligation to Mr. Sample that it would discharge.

24. Neither Transfer was disclosed to the Debtor's unsecured creditors before the Petition Date.

25. After the Transfers, the Debtor retained no material assets other than the cash in its operating account, which was itself subject to a restraint by the secured lender.

The Trustee's Demand

26. On June 2, 2026, the Trustee sent a written demand to Transferee and to Mr. Sample requesting that each return the Transfers to the estate and provide an accounting of the Property's rents and proceeds since March 5, 2026.

27. Transferee and Mr. Sample did not return the Transfers or provide the accounting within the time stated in the demand, and the Trustee brings this action because the demand was not satisfied.

Conditions Precedent

28. All conditions precedent to the Trustee's right to bring this adversary proceeding and to the relief requested have occurred, have been performed, or have been waived.

FIRST CLAIM FOR RELIEF

(Avoidance of Constructive Fraudulent Transfers, 11 U.S.C. § 548(a)(1)(B))

29. The Trustee incorporates the preceding paragraphs.

30. The Property Transfer and the Cash Transfer were transfers of an interest of the Debtor in property made within two years before the Petition Date.

31. The Debtor received less than a reasonably equivalent value in exchange for each Transfer, and the Debtor was insolvent on the date of each Transfer or became insolvent as a result of it.

32. The Property Transfer and the Cash Transfer are avoidable under 11 U.S.C. § 548(a)(1)(B) and may be preserved for the estate under 11 U.S.C. § 551.

SECOND CLAIM FOR RELIEF

(Avoidance of Transfers Under 11 U.S.C. § 544(b) and Applicable Louisiana Law)

33. The Trustee incorporates the preceding paragraphs.

34. Under 11 U.S.C. § 544(b), the Trustee may avoid any transfer of an interest of the Debtor in property that is voidable under applicable law by a creditor holding an unsecured claim that is allowable under 11 U.S.C. § 502.

35. Unsecured creditors of the Debtor holding allowable claims could have avoided the Transfers under applicable Louisiana law governing fraudulent transfers, because the Debtor made them without receiving reasonably equivalent value while insolvent, and for the benefit of an insider.

36. The Transfers are therefore avoidable by the Trustee under 11 U.S.C. § 544(b), and may be preserved for the estate under 11 U.S.C. § 551.

THIRD CLAIM FOR RELIEF

(Recovery of Avoided Transfers, 11 U.S.C. § 550)

37. The Trustee incorporates the preceding paragraphs.

38. Upon avoidance of the Transfers, the Trustee may recover the Property, or its value, and the $142,500 in cash, or their value, from Transferee and Mr. Sample as the initial transferees, or from any entity for whose benefit the Transfers were made, under 11 U.S.C. § 550(a)(1).

39. Under 11 U.S.C. § 502(d), any claim of Transferee or Mr. Sample against the estate must be disallowed unless and until they pay the amounts recoverable under 11 U.S.C. § 550.

RESERVATION OF RIGHTS

40. The Trustee reserves the right to amend this complaint to assert additional avoidance and recovery claims, including claims under 11 U.S.C. §§ 547, 548(a)(1)(A), and 549, as her investigation continues, and to seek relief against any subsequent transferee of the Property.

PRAYER FOR RELIEF

WHEREFORE, the Trustee respectfully requests that the Court enter judgment:

(a) avoiding the Property Transfer and the Cash Transfer under 11 U.S.C. §§ 544(b) and 548(a)(1)(B) and preserving them for the estate under 11 U.S.C. § 551;

(b) awarding the estate a money judgment against Transferee for the value of the Property, not less than $1,850,000, under 11 U.S.C. § 550(a);

(c) awarding the estate a money judgment against Mr. Sample for $142,500 under 11 U.S.C. § 550(a), with interest as allowed by law;

(d) disallowing any claim of Transferee or Mr. Sample against the estate under 11 U.S.C. § 502(d) until the judgments are paid; and

(e) granting the Trustee such other and further relief as the Court deems just and proper.

Dated: [date]

Respectfully submitted,

/s/ [COUNSEL NAME] (La. Bar No. [number])

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